

DentalCare Pro Enterprise

Commercial Software License Agreement & HIPAA Data Protection Terms

IMPORTANT NOTICE: PLEASE READ THIS AGREEMENT CAREFULLY BEFORE INSTALLING OR USING THIS SOFTWARE. BY INSTALLING, COPYING, OR OTHERWISE USING DENTALCARE PRO ENTERPRISE, YOU AGREE TO BE BOUND BY THE TERMS OF THIS AGREEMENT.

1. Grant of License

DentalCare Pro Inc. grants to Licensee a non-exclusive, non-transferable, commercial license to install and execute DentalCare Pro on dental clinic workstations and local area network (LAN) servers within the licensed clinical practice facility. This license permits multi-operatory dental chair access, doctor and hygienist charting, treatment planning, and administrative practice management.

2. Absolute Patient Health Information (PHI) Sovereignty

Licensee retains exclusive ownership and sovereignty over 100% of all patient records, electronic health records (EHR), odontograms, periodontal charts, clinical progress notes, radiographs, DICOM images, and billing ledgers stored within DentalCare Pro. DentalCare Pro Inc. claims no ownership, intellectual property rights, or telemetry access to Licensee's confidential patient health information.

3. HIPAA Compliance & Healthcare Security Safeguards

DentalCare Pro includes technical safeguards engineered to assist covered healthcare entities in complying with the Health Insurance Portability and Accountability Act of 1996 (HIPAA) and the HITECH Act. These features include: (a) AES-256 encryption at rest for sensitive health data; (b) SHA-256 / Argon2id salted password hashing; (c) Tamper-evident audit logging recording all patient record views, updates, and exports; and (d) Automatic session timeouts.

4. Source Code Protection & Proprietary Rights

DentalCare Pro is distributed exclusively in compiled binary form. Licensee shall not decompile, disassemble, reverse engineer, decrypt, modify, or extract source code from any application binaries (including DentalCarePro.exe, DentalCarePro-API.exe, updater.exe, and backup_manager.exe). All intellectual property rights in the software remain the exclusive property of DentalCare Pro Inc.

5. Data Retention & Uninstaller Safeguard

In compliance with healthcare medical record retention mandates, the uninstaller provides an automated safeguard prompting the user to retain clinical databases and backup archives. Uninstallation of application binaries does not purge patient medical histories unless explicitly authorized by the practice administrator.

6. Disclaimer of Medical Judgment & Limitation of Liability

DentalCare Pro is a practice management and clinical documentation software tool. It does not replace the professional diagnostic, treatment, or prescription judgment of licensed dental practitioners. DentalCare Pro Inc. shall not be liable for any direct, indirect, consequential, or incidental damages arising out of clinical treatment decisions.

7. Governing Law & Dispute Resolution

This Agreement shall be governed by and construed in accordance with the laws of the State of Delaware, United States, without regard to its conflict of law principles.